

**JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SOLICITATION SPE7LX24R0043**

[X] ORIGINAL

[] ADDENDUM (attach copy of original J&A for add-ons or revisions)

1. The Defense Logistics Agency (DLA) Land and Maritime is the contracting activity.
2. The action being approved is the acquisition of supplies on other than a full and open competition basis. FAR Part 12 procedures will be used in accordance with 41 U.S.C. 3307.
3. The supplies required to meet the using activity's needs are described as follows: Plate, Intermediate, Controller Assembly, TR, Plate Intermediate, Adapter, Assembly FL, Control Assembly, Transmission, Plate, Damper, Transm, Transmission Control, Control, Motor-Trans, Seal, Plain Encased, Solenoid, Electrical, Solenoid, Electrical and Electronic Module used on the Mine Resistant Vehicle (MRAP), FMTV, BAE/AH Cat 1 and 2 MRAP, Launcher, Rocket HIG, All Terrain Crane and various other vehicles and support equipment. The solicitation is a DLA Stock procurement for the following National Stock Numbers (NSNs):

CLIN	NSN	ITEM	U/I	AMC	AMSC	PIC	QCC	ADQ	ADV
0001	2520-01-360-6318	Plate, Intermediate	EA	3	C	2	DAA	195	
0002	2520-01-459-1944	Controller Assembly, TR	EA	3	B	2	FDA	195	
0003	2520-01-496-6109	Plate, Intermediate	EA	3	C	2	DAA	4216	
0004	2520-01-505-3162	Adapter, Assembly FL	EA	3	D	2	CAA	229	
0005	2520-01-554-9359	Control Assembly, Transmission	EA	3	B	1	EBA	404	
0006	2520-01-567-6768	Plate, Damper, Transm	EA	3	D	2	DAA	333	
0007	2590-01-555-4695	Transmission Control	EA	3	D	2	DAA	71	
0008	3010-01-560-6353	Control, Motor-Trans	EA	3	R	2	DAA	129	
0009	5330-01-360-5918	Seal, Plain Encased	EA	3	D	2	CAA	1014	
0010	5945-01-132-4189	Solenoid, Electrical	EA	3	B	2	DAA	1440	
0011	5945-01-571-6997	Solenoid, Electrical	EA	3	D	2	DAA	1139	
0012	5963-01-590-2418	Electronic Module	EA	3	B	2	DAA	466	

The Federal Supply Code (FSC) for CLINs 0001 - 0006 is 2520 (Vehicle Power Transmission Components), for CLIN 0007 is 2590 (Miscellaneous Vehicle Components), for CLIN 0008 is 3010 (Torque Converters and Speed Changers), CLIN 0009 is 5330 (Packing and Gasket Materials), for CLINs 0010 -0011 is 5945 (Disks and Stones, Abrasive) and for CLIN 0012 is 5963 (Electric Components), which represents the commodity classes of these items.

The proposed action is for the solicitation and award of a three (3) year (2 base years and 1 option year), firm fixed price (FFP) Indefinite Quantity Contract (IQC). The estimated contact values are below:

Total Annual Demand Value (ADV): \$2,459,310.19

Source Selection Information - See FAR 2.101 and 3.104

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Maximum Contract Value: \$ [REDACTED]
Minimum Contract Value: \$ [REDACTED]

4. The statutory authority permitting other than full and open competition is:
10 U.S.C. §3204(a)(1) - Available from only one or a limited number of sources.
5. If restricted to the only source(s) of supply, include source(s) and Commercial and Government Entity (CAGE) code:

CLIN	NSN	ITEM	Approved source	CAGE	P/N
0001	2520-01-360-6317	Plate, Intermediate	Allison Transmission	73342	29536337
0002	2520-01-459-1944	Controller Assembly TR	Allison Transmission	73342	29538371
0003	2520-01-496-6109	Plate, Intermediate	Allison Transmission	73342	29536336
0004	2520-01-505-3162	Adapter, Assembly FL	Allison Transmission	73342	29511624
0005	2520-01-554-9359	Control Assembly, Transmission	Allison Transmission	73342	A590024D
0006	2520-01-567-6768	Plate Damper, Transm	Allison Transmission	73342	29564138
0007	2590-01-555-4695	Transmission Control	Allison Transmission	73342	29542904
0008	3010-01-560-6353	Control, Motor-Trans	Allison Transmission	73342	ECB00D26
0009	5330-01-360-5918	Seal, Plain Encased	Allison Transmission	73342	29502336
0010	5945-01-132-4189	Solenoid, Electrical	Allison Transmission	73342	12288178
0011	5945-01-571-6997	Solenoid, Electrical	Allison Transmission	73342	29545638
0012	5963-01-590-2418	Electronic Module	Allison Transmission	73342	A5900FXA

The use of the authority cited below:

Acquisition Method Code (AMC) 3. Acquire, for the second or subsequent time, directly from the manufacturer.

The use of the authority cited is based on:

The following AMSC descriptions are available in Defense Federal Acquisition Regulation Supplement (DFARS) Procedures, Guidance and Information (PGI) 217.7506 Part 2.

Acquisition Method Suffix Code (AMSC) C. This part requires engineering source approval by the design control activity in order to maintain the quality of the part. Existing unique design capability, engineering skills, and manufacturing knowledge by the qualified source(s) require acquisition of the part from the approved source(s). The approved source(s) retain data rights, manufacturing knowledge, or technical data that are not economically available to the Government, and the data or knowledge is essential to maintaining the quality of the part. An alternate source must qualify in accordance with the design control activity's procedures, as approved by the cognizant Government engineering activity. The qualification procedures must be approved by the Government engineering activity having jurisdiction over the part in the intended application. If one source is approved, AMCs 3, 4, or 5 are valid. If at least two sources are approved or if data is adequate for an alternate source to qualify in accordance with the design control activity's procedures, AMCs 1 or 2 are valid.

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Acquisition Method Suffix Code (AMSC) B. This part must be acquired from a manufacturing source(s) specified on a source control or selected item drawing as defined by the current version of DoD-STD-100. Suitable technical data, Government data rights, or manufacturing knowledge are not available to permit acquisition from other sources, nor qualification testing of another part, nor use of a second source part in the intended application. Although, by DoD-STD-100 definition, altered and selected items shall have an adequate technical data package, data review discloses that required data or data rights are not in Government possession and cannot be economically obtained. If one source is available, AMCs 3, 4, or 5 are valid. If at least two sources exist, AMCs 1 or 2 are valid.

Acquisition Method Suffix Code (AMSC) D. The data needed to acquire this part competitively is not physically available, it cannot be obtained economically, nor is it possible to draft adequate specifications or any other adequate, economical description of the material for a competitive solicitation. AMCS 3, 4, or 5 are valid.

Acquisition Method Suffix Code (AMSC) R. The Government does not own the data or the rights to the data needed to purchase this part from additional sources. It has been determined to be uneconomical to buy the data or rights to the data. It is uneconomical to reverse engineer the part. This code is used when the Government did not initially purchase the data and/or rights. If only one source has the rights or data to manufacture this item, AMCs 3, 4, or 5 are valid. If two or more sources have the rights or data to manufacture this item, AMCs 1 or 2 are valid.

A Strategic Acquisition Program Directorate (SAPD) product specialist, [REDACTED], did a technical review on September 29, 2023 and certified that the technical information was complete and accurate (Technical Certification included at Attachment 1). For all items in which are coded AMSC C, B, D or R, the listed approved source is the only known source that has the capability to manufacture these items and possess the technical data required to manufacture these items. Furthermore, the drawings are proprietary to the sources and the data or rights for these items are not owned by the Government. There are currently no requests for update or change submitted to the ESA (339s) on these items.

6. Efforts were taken to ensure that offers are solicited from as many sources as practicable. As part of these efforts, a sources-sought notice was posted on [https:// SAM.gov](https://SAM.gov) with an opening date of December 19, 2023 and a close date of December 26, 2023. No inquiries were received from the notice. This acquisition was synopsisized for 15 days prior to the solicitation opening on [https:// SAM.gov](https://SAM.gov). At the completion of the synopsis period, the Purchase Requisition (PR) will be solicited on the internet for 30 days, via the DLA Internet Bid Board System (DIBBS).

7. I hereby determine that the anticipated cost to the Government will be fair and reasonable. Past procurement history will be reviewed and a Producer Price Index (PPI) analysis will be performed. GSA Advantage will be checked at time of negotiations and award for availability of these items and a new internet search will be conducted for any commercially available pricing. Informal cost breakdowns may be requested as needed. Based upon the above techniques, I anticipate that the cost to the Government will be fair and reasonable. This will be a FAR Part 12 commercial three (3) year FFP IQC (2 base years and 1 option year).

8. Market Research/Efforts to Obtain Competition:

Market Survey [10 U.S.C. §3204(e)(2)(d)]:

Market research for these items is limited due to the specific requirements involved for these parts. The product specialist indicated that Allison Transmission. (CAGE 73342) is the only source that possesses the technical data required to manufacture these items. The approved source retains the technical data that is not available to the Government, and the data or knowledge is essential to maintaining the quality of these parts. Although these items have been determined commercial of a type, these items are used on military specific vehicles designed to satisfy the needs of the warfighter. These items are determined commercial of a type or commercial of a type with minor modifications to meet military specific needs. Allison Transmission Inc. is the only known source that has the technical data and manufacturing knowledge necessary to ensure that these repair and replacement parts properly support weapon systems such as the FMTV, OSV, etc. There is no evidence that standard, similar commercial parts can support these military specific vehicles. It is therefore essential to limit competition to Allison Transmission, Inc. part numbered items. Material Master did not show these NSNs as commercial. However, previous buys had determined these items to both be commercial with the exception of one of the items. A commercial price list had been provided to the Government on the previous buys as located in RM.

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In addition, the buyer had located pricing online available. The information found in RM on the last buy was forwarded to the Product Specialist, [REDACTED], who concurred with commerciality on January 25, 2024. The current buyer did find the one NSN not previously determined commercial available online with pricing (NSN 5330-010360-5918). The returned market survey also indicated this item to be commercial. This information was also sent to the PS, [REDACTED]. The material master now shows all items as commercial. These items were not found available on GSA Advantage when searched by the buyer. Per DFARS PGI 212.102, the prior commercial determination shall serve as a determination for subsequent procurements. This purchase shall serve as a determination for subsequent procurements for NSN 5330-01-360-5918. Based on market research and the previous commercial determination, the Contracting Officer has determined that these items are commercial.

A market survey was conducted in December of 2023.

Total number of vendors contacted: 6.

Names of vendors contacted: Allison Transmission CAGE 73342, Penn Power Group CAGE 62860, Clarke Power Services Inc. CAGE 1SHN5, Central Power System CAGE 0PJT5, Centranz Inc. CAGE 1VDQ2 and WW Williams CAGE 43QM5.

Names of vendors responding: Allison Transmission CAGE 73342, Clarke Power Services Inc. CAGE 1SHN5 and WW Williams CAGE 43QM5.

Techniques used to conduct survey: The market survey was conducted by e-mail.

Results of market survey: One (1) market survey was returned by e mail.

Allison Transmission (CAGE 73342) (Large Business)

Large business manufacturer.

Stated they would be quoting thru a dealer and gave a list of five.

Clarke Power Services Inc. (CAGE 1SHN6) (Small Business)

Small business dealer.

Stated they are interested in submitting an offer.

Offering for a large business manufacturer, Allison Transmission.

Stated items are commercial.

[REDACTED]

WW Williams (CAGE 43QM5) (Small Business)

Small business dealer.

Replied initially that they would complete the survey but never submitted.

9. Additional facts supporting other than full and open competition are:

Based upon the technical certification on file in DLA Land and Maritime – Value Engineering Program (VEP) technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government. There is one open VEP project per [REDACTED], Chief Value Management Branch, for NSN 5330-01-360-5918. However, he stated to proceed regardless as they had loaded a part for use but never received a SAR package.

10. A listing of sources, if any, indicating an interest in the acquisition is: Clarke Power Services CAGE 1SHN6.

11. These items are subject to the following methods of locating additional sources: The solicitation contains the Defense Logistics Acquisition Directive (DLAD) Procurement Notes L04 “Offers for Part Numbered Items” and M06 “Evaluation of offers for Part Numbered items.” In addition, the solicitation will also contain DLAD Procurement Note L22 “Restriction of Alternate Offers for Source Controlled Items” specifically to address the items that are AMSC B.

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12. Past history was reviewed in Records Management. The previous procurements amongst all the NSNs were under the following: SPE7LX19D0204, SPE7LX19D0203 and SPE7L323D61QD. The previous J&A for SPE7LX19D0204 and SPE7LX19D0203 is attached. The J&A for SPE7L323D61QD could not be located within RM.

I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

WOLF.KRISTINA.D.1384376220
Digitally signed by
WOLF.KRISTINA.D.1384376220
Date: 2024.07.11 16:56:13 -04'00'

Kristina Wolf- Contracting Officer

Phone Number

Date

WIEBUSCH.JAMIE.1251897324
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Date: 2024.07.22 10:20:49 -04'00'

Competition Advocate

Phone Number

Date

APPROVAL REQUIREMENTS

- | | |
|--|------------------------------------|
| ☐ Up to \$750,000 | Contracting Officer |
| ☒ \$750,000 up to \$15,000,000 | Competition Advocate |
| ☐ \$13,500,000 up to \$100,000,000 | Head of Contracting Activity (HCA) |
| ☐ over \$100,000,000 | Senior Procurement Executive (AQ) |

Attachment 1- Technical Certification
Attachment 2 – Previous J&A